

uncertainty arises from the circumstance that the [*133] Court has not before it for its *guidance the *whole intention* of the testator in reference to the object: and in such a case the Court will make a declaration that the devisee or legatee is a trustee for objects unascertainable, and (unless the trust was by way of charge upon the estate of the devisee or legatee) will decree a resulting trust for the benefit of the heir-at-law or next of kin, according to the nature of the property (a).

5. **Uncertainty of the objects.**—“**Family.**”—The *objects* have been held to be uncertain where *personal estate* was given to A., with a hope “that he would continue it in the *family*” (b); but, as regards *personal estate*, the word *family* has been sometimes construed as equivalent to relations, that is next of kin (c); and where *freeholds* were so devised, it was held that by “*family*” was to be understood the worthiest member of it, viz., the heir-at-law (d). But the designation was held to be too uncertain as to freeholds, where the request was to distribute “*amongst* such members of the person’s *family*” as he should think most deserving (e).

“**Heirs.**”—In another case *both real and personal estate* were blended together, and given to A., in full confidence that she would devise the whole of the estate to “such of the heirs of the testator’s father as she might think best deserved

(a) *Corporation of Gloucester v. Wood*, 3 Hare, 131; *Briggs v. Penny*, 3 Mac. & G. 546; *Bernard v. Minshull*, Johns. 276; see and consider the observations of V. C. Wood, *ib.* 286.

(b) *Harland v. Trigg*, 1 B. C. C. 142. See *Wright v. Atkyns*, G. Coop. 121; *Woods v. Woods*, 1 M. & C. 401; *Re Parkinson’s Trust*, 1 Sim. N. S. 242; *Williams v. Williams*, 1 Sim. N. S. 358; *Lambe v. Eames*, 10 L. R. Eq. 267; 6 L. R. Ch. App. 597; but see *White v. Briggs*, 2 Phil. 583; and *Liley v. Hey*, 1 Hare, 580.

(c) *Cruyys v. Colman*, 9 Ves. 319; *Grant v. Lynam*, 4 Russ. 292. [But the primary meaning of the word “*family*” in a will is “*children*,” and

any other meaning must be supplied by the context, *Pigg v. Clarke*, 3 Ch. D. 672; and under a testamentary gift by a married man to his family, his widow takes no interest; see *Re Hutchinson and Tenant*, 8 Ch. D. 540. As to the meaning of the word “*family*,” when occurring in a power of selection, see *Sinnott v. Walsh*, 3 L. R. Ir. 12; 5 L. R. Ir. 27.]

(d) *Atkyns v. Wright*, 17 Ves. 255; S. C. 19 Ves. 299; S. C. G. Coop. 111; and see S. C. T. & R. 143; *Malone v. O’Connor*, Ll. & G. temp. Plunket, 465; *Griffiths v. Evans*, 5 Beav. 241; *White v. Briggs*, 2 Phil. 583; *Green v. Marsden*, 1 Drew. 646.

(e) *Green v. Marsden*, 1 Drew. 646.